

establish, on the trial, the facts showing such performance.” Plaintiff has made such a general allegation of performance at paragraph 29 of the complaint: “[Plaintiff] has performed all the terms, conditions, and covenants of the Lease that are to be performed by [Plaintiff].”

Consequently, defendant Maxwell’s motion for judgment on the pleadings as to the first cause of action of Plaintiff’s complaint on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant [Code Civ. Proc., §438, subd. (c)(1)(B)(ii)] for breach of contract is DENIED.

B. DECLARATORY RELIEF

Defendant Maxwell moves for judgment on the pleadings as to the third cause of action of Plaintiff’s complaint for declaratory relief asserting that it “fails for the same reasons as the first Cause of Action,” i.e., “the complaint fails to establish that there is the existence of an enforceable contract that Defendants could have breached.”⁶

For the same reasons discussed above, defendant Maxwell’s motion for judgment on the pleadings as to the third cause of action of Plaintiff’s complaint on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant [Code Civ. Proc., §438, subd. (c)(1)(B)(ii)] for declaratory relief is DENIED.

IV. CONCLUSION

Based on the foregoing, the defendant’s motion for judgment on the pleadings as to the first and third causes of action are DENIED. The Court will propose the formal Order.

Calendar Line # 5

Case Name James Stanford vs Ford Motor Company et al

Case No. 24CV453673

Motion for Summary Judgment/Adjudication

Before the court is Ford Motor Company’s motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

In this action, plaintiff James Stanford (“Plaintiff”) alleges, among other things, defendant Ford Motor Company (“Ford”) and others violated the Song-Beverly Consumer Warranty Act (“Act”) with regard to a 2019 Ford F150 vehicle (“Vehicle”). In particular, Plaintiff alleges the Vehicle suffered a Transmission Defect. (Complaint, ¶¶26 – 37).

On December 10, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for:

- (1) Violation of subdivision (d) of Civil Code section 1793.2
- (2) Violation of subdivision (b) of Civil Code section 1793.2
- (3) Violation of subdivision (a)(3) of Civil Code section 1793.2
- (4) Breach of the Implied Warranty of Merchantability
- (5) Fraudulent Inducement – Concealment
- (6) Negligent Repair

⁶ See page 6, lines 2 – 3 and 6 – 8, of the memorandum of points and authorities in support of defendant Maxwell’s motion for judgment on the pleadings.

On January 15, 2025, defendant Ford filed an answer to Plaintiff's complaint.

On May 20, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff's complaint.

On May 21, 2026, the court issued an order advancing the hearing date of defendant Ford's motion for summary judgment/ adjudication from September 24, 2026 to August 13, 2026.

On March 20, 2026, defendant Ford filed and served (electronically and personally) Plaintiff with amended notice of its motion for summary judgment/ adjudication.

Based on a hearing date of August 13, 2026, Plaintiff's opposition was due July 24, 2026. (See Code Civ. Proc., §437c, subd. (b)(2)—“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing.”). Plaintiff has not filed any timely opposition.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)).

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850).

“There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. ANALYSIS

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)).

“A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)).

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)).

A. FIRST CAUSE OF ACTION

As to the first three causes of action of Plaintiff’s complaint, defendant Ford acknowledges:

A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, § 1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal. App. 3d 878, 886-887 [263 Cal. Rptr. 64]).

(*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101).

Specifically with regard to the third element, defendant Ford cites *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*) where the court explained:

The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle "after a reasonable number of attempts." "Attempts" is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.

Here, defendant Ford proffers evidence that there was only one warranty repair on the Vehicle.⁷ Pursuant to *Silvio*, one attempt does not trigger defendant Ford’s obligation to make restitution or replace the Vehicle under the Act. Having filed no opposition, Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

B. SECOND CAUSE OF ACTION

Civil Code section 1793.2, subdivision (b), states, in relevant part, “the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” Here, defendant Ford proffers evidence that the subject Vehicle was in service for no more than 15 days, not in violation of the Act.⁸ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

C. THIRD CAUSE OF ACTION

Civil Code section 1793.2, subdivision (a)(3), states, “Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . . Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Defendant Ford proffers evidence that the repair records do not indicate Ford failed to make service literature and replacement parts available to authorized service and repair facilities.⁹ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

⁷ See Ford Motor Company’s Separate Statement of Undisputed Material Facts in Support of Motion for Summary Adjudication (“Ford UMF”), Issue No. 1, Fact Nos. 1 – 13.

⁸ See Ford UMF, Issue No. 1, Fact Nos. 1 – 13.

⁹ See Ford UMF, Issue No. 1, Fact Nos. 1 – 13.

D. FOURTH CAUSE OF ACTION

Under the implied merchantability warranty, “every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable.” (§ 1792). The warranty “arises by operation of law” and therefore applies despite its omission from a purchase contract. (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal.App.4th 1318, 1330 [170 Cal. Rptr. 3d 861]; see *American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1295 [44 Cal. Rptr. 2d 526] (*American Suzuki*)). Merchantability, as pertinent here, means that the goods “[p]ass without objection in the trade under the contract description,” and are “fit for the ordinary purposes for which such goods are used.” (§ 1791.1, subd. (a)).

(*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545 (*Brand*)).

a ““core test of merchantability is fitness for the ordinary purpose for which such goods are used.”” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303 [95 Cal. Rptr. 3d 285] (*Mexia*)). “Such fitness is shown if the product ‘is “in safe condition and substantially free of defects”’ [Citation.]” (*Ibid.*; see *American Suzuki, supra*, 37 Cal.App.4th at p. 1296 [implied warranty does not promise to fulfill buyer's expectations, but provides instead for minimum level of quality]). Thus, a new car need not “be perfect in every detail”; rather, its implied merchantability “requires only that a vehicle be reasonably suited for ordinary use.” (*Keegan v. American Honda Motor Co., Inc.* (C.D.Cal. 2012) 838 F.Supp.2d 929, 945).

(*Brand, supra*, 226 Cal.App.4th at p. 1546).

Here, defendant Ford proffers evidence that the Vehicle was presented once for transmission slippage or harsh jerking and contends this does not render the Vehicle unfit for its ordinary purpose, as a matter of law.¹⁰ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

E. FIFTH CAUSE OF ACTION

Plaintiff's sixth cause of action alleges fraudulent concealment of the Transmission Defect. Defendant Ford proffers evidence that Plaintiff has only provided factually devoid discovery responses to support this claim.¹¹

“[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision [(p)(1)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [mere restatement of the allegations contained in the first amended complaint is so devoid of facts that an absence of evidence can be inferred]; see also *Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 104 [Defendant propounded a series of special interrogatories which called for all facts regarding plaintiffs' exposure to asbestos from defendant's products. Plaintiffs' answers “contain[ed] little more than general allegations against [defendant] and does not state specific facts showing that [plaintiff] was actually exposed to asbestos-containing material from [defendant's] products.”] See also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102-1103—“a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred.”).

The court agrees with defendant Ford that, based upon Plaintiff's devoid discovery responses, the burden has shifted to Plaintiff to set forth specific facts which prove the existence of a triable issue of material fact.

¹⁰ See Ford UMF, Issue No. 2, Fact Nos. 1 - 8.

¹¹ See Ford UMF, Issue No. 3, Fact Nos. 1 – 4 and 14 – 21.

Defendant Ford has met its initial burden of showing that the causes of action asserted in Plaintiff's complaint have no merit. Having filed no opposition, Plaintiff has failed to show that a triable issue of one or more material facts exists. Accordingly, defendant Ford's motion for summary judgment is GRANTED.

IV. CONCLUSION

Based on the foregoing, the motion for summary judgment is GRANTED. The Court will prepare the formal Order.

Calendar Line # 6

Case Name Liangbei Wang vs Apple Inc.

Case No. 25CV468204

Demurrer

Before the court is defendant Apple Inc.'s demurrer to plaintiff's first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Liangbei Wang ("Plaintiff") alleges that in 2017 – 2018, Plaintiff created and actively used Apple ID and iCloud email accounts. (First Amended Complaint ("FAC"), at unnumbered page 3). In early 2024, Plaintiff discovered he could log in but email boxes were inaccessible. (*Id.*) Between 2024 and 2025, Plaintiff repeatedly contacted defendant Apple Inc. ("Apple") support, provided identity verification, and requested restoration of access and data export. (*Id.*). Defendant Apple refused or failed to provide relief. (*Id.*).

Plaintiff alleges defendant Apple knowingly and wrongfully restricted access to Plaintiff's iCloud email accounts. (*Id.*). Plaintiff further alleges defendant Apple erased or withheld historical iCloud drive contents, causing loss of critical data including cryptocurrency private keys and transaction records. (*Id.*).

On June 16, 2025, Plaintiff, a self-represented litigant¹², filed a complaint against defendant Apple.

On September 18, 2025, defendant Apple filed a demurrer to Plaintiff's complaint.

An October 16, 2025 minute order reflects the court (Hon. Deen) sustained defendant Apple's demurrer with leave to amend.

On November 12, 2025, Plaintiff filed the now operative FAC. In it, Plaintiff identifies and asserts the following causes of action:

- (1) Breach of Written Contract
- (2) Breach of Implied Covenant of Good Faith
- (3) Violation of Stored Communications Act (18 U.S.C. §2701)
- (4) Conversion/ Trespass to Chattels
- (5) Unfair Competition (Bus. & Prof. Code §17200)

¹² Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. "[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]" (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). "A litigant has a right to act as his own attorney [citation] 'but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.'" (*Lombardi v. Citizens Nat'l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).